

may, it is conceived, sell part of the estate to pay off a mortgage affecting the estate though not mentioned in the settlement, for this in substance is a reinvestment, and *à fortiori* if the trustees have a power of investing on real securities until a purchase can be found, they can sell part of the estate and apply the proceeds in taking a transfer of the mortgage, provided it be an adequate security.

49. **Sale of limited interests.** — Trustees for sale of a limited interest in an estate (as a remainder), or of an aliquot part of the estate (as an undivided one-fourth), may concur with the other parties in a sale of the whole estate for one entire sum, and may agree afterwards as to the apportionment of the purchase-money, and if the parties cannot agree the apportionment will be made by the Court (*a*). But otherwise, if there be not any intelligible principle upon which the apportionment can be made (*b*).

50. **Reimbursement of expenses on account of the trust.** — A trustee may reimburse himself a sum of money *bond fide* advanced by him for the benefit of the *cestui que trust*, or even for his own protection in the execution of his office. For, "As it is a rule," said Lord Chancellor King, "that the *cestui que trust* ought to save the trustee harmless, so within the reason of that rule, when the trustee has honestly and fairly, without any possibility of being a gainer, laid down money by which the *cestui que trust* is discharged from being liable for the whole money lent, or from a plain and great hazard of being so, he ought to be repaid" (*c*).

51. **Power of trustees for sale to clear the estate.** — A trustee for sale has been held to be justified in applying part of the purchase-money in paying off a charge without satisfaction of which the purchaser refused to complete, and which the trustee was professionally advised was still subsisting, though the charge itself was open to doubt (*d*).

* 52. **Power to grant leases.** — A trustee of lands [*595]

(*a*) *Clark v. Seymour*, 7 Sim. 67; 10 Jur. N. S. 1246; S. C. 4 De G. J. Rede v. Oakes, 32 Beav. 555; see & S. 505.

Earl Powlett v. Hood, 5 L. R. Eq. 115, and *ante*, p. 430. (*c*) *Balsh v. Hyham*, 2 P. W. 453.

(*d*) *Forshaw v. Higginson*, 8 De G. M. & G. 827.